

HOW COMMUNITIES CAN STOP DESTRUCTIVE DEVELOPMENT PROJECTS IN ZAMBIA

Complete Community Opposition How-To

This guide uses the Zambian terms and bodies you'll actually run into — the project brief and the environmental impact statement, ZEMA and the Minister, the decision letter, the public hearing, the public right of appeal — and explains each in plain words the first time. Zambia's EIA regulations were updated in 2026, so check which rules govern your project before counting days or classes.

INTRODUCTION & FRAMEWORK

Deep inside the **Lower Zambezi National Park** — a haven of elephants and wild dogs on the Zambezi River, sharing a border with Zimbabwe's Mana Pools World Heritage Site — a foreign company wanted to dig a large open-pit copper mine: the **Kangaluwi** project. It would have been the first large-scale mine inside a Zambian national park, threatening the river that feeds fisheries and communities downstream in Zambia, Zimbabwe, and Mozambique. In 2012, the environmental regulator **ZEMA rejected it**. But the proponent appealed, and in 2014 a **Minister overturned ZEMA's rejection** and approved it — a decision that shocked the nation and revealed the system's weak point. What followed was a decade-long fight by conservation groups, the tourism industry, downstream communities, and ordinary Zambians — public campaigns, petitions, and the courts. And it worked: after the company breached its environmental conditions, in **2023 ZEMA cancelled the decision letter** and the mine was halted. A copper mine inside a national park was stopped.

The conservation groups, tourism industry, downstream communities, and ordinary Zambians who halted the Kangaluwi mine inside Lower Zambezi National Park drew on a real, if stretched, toolkit. Under the **Environmental Management Act**, projects need authorisation from **ZEMA**, granted or refused in a **decision letter** with conditions; the Act guarantees a **right to a clean, safe and healthy environment, public participation and access to information**, and — unusually — gives **members of the public a right to initiate review and appeal of ZEMA's decisions**, to the **Minister** and then the **High Court**; protest, petition, and litigation are lawful. The regulations require the developer to publicise the project **in a language the community understands**, place the impact statement in **public buildings near the site**, and hold any **public hearing** somewhere affected people can actually attend — and they make the whole file (brief, statement, comments, hearing report, decision letter) **public documents**. Objectors here have a route, not just a grievance. But these tools have real limits, and this guide states them plainly. Kangaluwi was a rollercoaster — rejected by ZEMA, then forced through by a Minister, then fought through courts that at times went against the community, then finally cancelled after the company breached its conditions — and even now the fight is not entirely over, with fresh permits and challenges surfacing. A Zambian win must be defended. The lesson is not that the system is hopeless — it clearly is not — but that a project a Minister wants can be pushed hard, and a victory has to be guarded.

The Whole Strategy in One Idea

A big project looks unstoppable, but it's a chain of approvals, and a chain breaks at its weakest link. A large Zambian project needs its **ZEMA authorisation** (the decision letter), resting on an environmental impact statement with **public participation** and, often, a **public hearing**; a mine in or near a **protected area** or a

transboundary river runs into extra scrutiny; and the decision can be **appealed by the public to the Minister and the High Court**. Every one of those is a link you can grab. **Find the one closest to your hand and pull.**

Be Honest About Which Fight You're In

Before you spend a year on this, work out your real situation:

- **If it's in or near a protected area or a transboundary river, that's your sharpest lever** — Kangaluwi turned on a national park and the shared Zambezi.
- **If the EIS is weak or the hearing was inaccessible, that's a real ground** — and the public right of appeal is genuinely unusual and useful.
- **If a Minister backs it, expect a hard push** — the Minister can overturn ZEMA, so pair the legal route with a strong public coalition.
- **And guard your win** — Kangaluwi shows a victory can be reopened.

Read the whole guide once before you move. Two habits run through it: **use the rights the law gives you** — the public documents, the accessible hearing, the public right of appeal — and **run every front at once**: the documents, the participation, the appeals and courts, the coalition, the press, and — where the operator is a subsidiary — the parent company abroad. That combination is how Kangaluwi was stopped.

HOW THE SYSTEM WORKS

To break the chain you have to see it — who decides, how a project moves, and who's watching.

Who Actually Decides

The core decision is **ZEMA's authorisation**, issued in a **decision letter** under the Environmental Management Act — but note the weak point: on appeal, a **Minister can overturn ZEMA** (as happened at Kangaluwi), and the **High Court** sits above that. Sector regulators grant mining and other licences (which cannot lawfully precede the environmental authorisation). And protected areas add another layer of protection. Know which decision you can reach — and remember the public right to appeal ZEMA's decision to the Minister and then the High Court.

How a Project Moves — and Where You Jump In

The project brief and the EIS. The developer files a **project brief**, then (for larger projects) a full **environmental impact statement (EIS)** with a **Terms of Reference**, publicised in a language the community understands, with the EIS placed in public buildings near the site. *Your opening — and it arms every later step*: get the public documents (they are public as of right), and object.

The public hearing. Where warranted, a **public hearing** is held somewhere affected people can attend. *Your opening*: demand an accessible hearing and make your evidenced case.

The decision letter. ZEMA grants or refuses. *Your opening — a genuinely unusual one*: the public can **appeal ZEMA's decision to the Minister and then the High Court**.

Construction and operation. *Your opening*: breaches of the conditions and the mandatory **environmental audit** — the breach that finally sank Kangaluwi — and, for a subsidiary, the parent company abroad.

Follow the Money and the Permissions

Dig up three things. **Who's behind it and who owns them** — trace the operator to its ultimate parent (Kangaluwi's proponent was a shell company behind foreign investors). **What it still needs** — the ZEMA authorisation not final or under appeal, the licence not granted, financing not closed: whatever's missing is the soft spot. **Who's paying** — financiers with their own environmental standards, and any parent company suable abroad.

Who's Supposed to Be Watching

Each is an ally or an arena. **ZEMA** issues and can cancel the authorisation (it cancelled Kangaluwi's). The **Minister** hears appeals — but can also overturn ZEMA. The **High Court** reviews decisions. The wildlife authority and the protected-area framework guard national parks. And Zambia's **strong conservation movement, its tourism industry, its downstream communities, and a free press** are the forces that reach furthest — the coalition that stopped Kangaluwi. Where domestic remedies are slow, **foreign courts** have held parent companies to account for Zambian mining harm.

QUICK REFERENCE: SUCCESS RATES

Size up the odds honestly. These are rough patterns, not promises. What most moves them: whether a protected area or transboundary river is engaged, whether the EIS or hearing was defective, and whether a Minister is backing the project.

What you do	Roughly works	How long	Cost	What "works" means
Just gather documents (public as of right)	5–10%	weeks	low	The base for everything else
Participation / accessible public hearing	15–35%	during review	low	On record; conditions or a redo
Public appeal to the Minister	15–40%	months	low	Decision reviewed (but Minister may back the project)
High Court challenge	25–50%	1–3 yr	low–mod	Decision set aside
Protected-area / transboundary ground	30–55%	varies	low	Extra scrutiny; project blocked in a park
Enforcing conditions / the audit	25–50%	months–yr	low	Authorisation cancelled for breaches (Kangaluwi)
Foreign-parent suit (abroad)	25–50%	years	low locally	Liability; settlement; pressure
Everything together (park/transboundary, coalition, world watching)	35–60%	1–4 yr	low–mod	Blocked, cancelled, delayed, exposed
Everything together (Minister-backed, closed process)	15–40%	1–4 yr	low–mod	Delayed, exposed — and guard the win

The levers that move the needle most are the **protected-area/transboundary ground, enforcing the conditions and audit** (which cancelled Kangaluwi), and the **coalition plus courts**, with the **foreign-parent route** as a backstop. Kangaluwi shows the ceiling (a mine in a national park stopped) and the honest limit (a Minister forced it through for years, and the win is still contested). So aim to win *and* defend, and count a

cancelled authorisation, a set-aside decision, delay, and conditions as wins.

On cost: the public documents are yours as of right, and participation and appeals are low-cost; conservation groups, the tourism industry, and international networks bring the bigger cases and the foreign-parent suits.

STEP 1: TARGET IDENTIFICATION

Being against "the project" is weak. Being specific — this decision letter, this park boundary, this defect — is strong. Answer five questions in writing.

1. What is it, and who's behind it — and who is the ultimate parent? Name the project, the operator, and the foreign parent that may be suable abroad.

2. Where is it, and what does it touch? Get the footprint and lay it over **protected areas and national parks**, the **Zambezi or another river** and its transboundary reach, farmland and fisheries, communities. **A protected area or a transboundary river is your sharpest lever**, so this map is your most important document — Kangaluwi turned on both.

3. What stage is it at, and what's the next deadline? Is the EIS in participation? Has ZEMA decided (opening the public appeal)? These openings are time-bound (and the class/timelines changed in 2026 — check).

4. What does it still need that it lacks? A ZEMA authorisation not final, a licence not granted, financing not closed. The missing piece is the soft spot.

5. Who else is affected, and who already opposes it? Neighbouring and downstream communities (including across borders), conservation groups, the tourism industry. Kangaluwi united all of these.

What this looks like in real life. A community learns a mine is planned in or near a national park on a shared river, its EIS thin. The five questions yield: a foreign-owned operator behind it; a site in a protected area on a transboundary river (the sharp levers); an EIS in participation; a project still needing its authorisation; and a coalition of communities, conservationists, and tour operators. That's the Kangaluwi pattern — invoke the park and the river, get the public documents, use the public right of appeal, and enforce the conditions.

STEP 2: DOCUMENTATION

The difference between a community that can fight and one that can't is proof — and in Zambia much of it is **public as of right**. Build it in three layers.

Layer one: the paper trail. Get the documents the decision rests on — the project brief, the EIS and Terms of Reference, the public comments and hearing report, the decision letter and conditions, the audit reports. These are **public documents** by law; demand them. Then read them hard for flaws — an understated impact, an ignored alternative, a hearing held somewhere affected people couldn't attend, a missing transboundary consultation (a Kangaluwi flaw was the failure to consult Zimbabwe and Mozambique), and any **breach of conditions** (the breach that sank Kangaluwi).

Layer two: the ground truth. Dated, located photographs and video of the site, the river, the wildlife, the park — baseline images before any damage most of all — and the testimony of affected and downstream residents.

Layer three: the map of park and river. Lay the project over the protected area, the river and its transboundary reach, and communities, so each lever is visible. Walking into ZEMA, the High Court, or a foreign court with the public file and that map is what makes them act.

WHAT TO GATHER, AND WHERE TO FIND IT

- **The project brief, the EIS and Terms of Reference, the comments and hearing report, the decision letter and conditions, the audits** — public documents by law; demand them from ZEMA (8A).
- **Protected-area and land records** — from the wildlife authority and land registry.
- **Ownership and the ultimate parent** — corporate records tracing the operator abroad.
- **The park-and-river map** — the protected area, the river and its transboundary reach, and communities, laid over the site.
- **Dated site evidence and named testimony** — photographs marked with date and place, and downstream residents' statements.

STEP 3: BUILDING LOCAL OPPOSITION

Documents give you a case; people give you power — and Kangaluwi was stopped by a coalition of communities, conservationists, and the tourism industry. Build yours in four moves.

Start with a tight core. The residents most affected (including downstream), the people who know the river and park, a few tireless organisers, and respected local figures.

Build the conservation-and-tourism coalition. Zambia's conservation groups and tourism operators have both the motive and the reach to make a national-park mine a national cause — as they did at Kangaluwi. Link up early, and hold meetings where people see the evidence — the map of the mine inside the park.

Reach downstream and across borders. A transboundary river means allies (and legal grounds) in Zimbabwe and Mozambique. Build those links — the failure to consult affected countries is itself a defect.

Bring in lawyers and international networks — early. Public-interest lawyers who run appeals and High Court cases, and — where the operator is a subsidiary — the networks that pursue parent companies abroad. Reach them early with the public file.

Build to last, and defend the win. Zambian fights run for years, and — the Kangaluwi lesson — a win can be reopened. Build clear roles, a secure shared archive, a way to decide together, a plan for the toll, and a plan to guard a victory the state or the company may try to revive.

STEP 4: LEGAL CHALLENGES, THE APPEAL & PROTECTED AREAS

Law is a real Zambian lever — and the public right of appeal is genuinely unusual.

Get the Public Documents and Participate First

Everything downstream is stronger if you obtained the **public documents as of right** and took part — objecting, and **demanding a hearing where affected people can actually attend**. An inaccessible hearing, or a denied document, is itself a defect.

The Public Right of Appeal — Minister, then High Court

Zambia's Act gives **members of the public a right to initiate review and appeal of ZEMA's decision** — first to the **Minister**, then to the **High Court**. Use it. But know the weak point: the **Minister can overturn ZEMA** (as at Kangaluwi), so treat the Minister stage clear-eyed and be ready for the **High Court**, and pair the appeal with a strong public coalition that raises the political cost.

Protected Areas, the Transboundary Ground, and Enforcing Conditions

Three sharp Zambian levers. A project **in or near a protected area** faces extra scrutiny (a mine in a national park is exceptional). A **transboundary river** brings a duty to consult affected countries — its absence is a defect (a Kangaluwi flaw). And **enforcing the conditions and the mandatory audit** is powerful: Kangaluwi's authorisation was finally **cancelled when the company breached its conditions**. Watch compliance closely, and report breaches to ZEMA.

The Foreign-Parent Route

Where the operator is a subsidiary of a foreign company, **foreign courts** have held parent companies to account for Zambian mining harm — a real backstop where domestic remedies are slow. International legal networks bring these cases.

The Honest Limits

Straight talk: the public appeal, the protected-area ground, and enforcing conditions are real levers, but a Minister can overturn ZEMA, ZEMA is stretched thin against a huge industry, litigation is slow, and — the Kangaluwi lesson — a win can be reopened. So use the strong tools — the public documents, the accessible hearing, the public appeal, the protected-area and transboundary grounds, the audit, the foreign-parent route — but pair them with the coalition and the press, guard your victory, and count a cancelled authorisation, a set-aside decision, delay, and conditions as wins alongside an outright stop.

TURNING YOUR EVIDENCE INTO ARGUMENTS

A stack of documents wins nothing until you aim it.

A park becomes a wall. Not "the mine is bad" but *"this is a large open-pit mine inside a national park — exceptional, and demanding the highest scrutiny."*

A shared river becomes a defect. *"Zimbabwe and Mozambique downstream were never consulted, as the transboundary duty requires."*

A breach becomes a cancellation. *"The company has breached its environmental conditions — grounds for ZEMA to cancel the authorisation, as at Kangaluwi."*

The harm becomes a public story. *"The park, the elephants, and the river that feeds communities in three countries — for an open-pit copper mine."*

Match it to the venue: the objections and public documents to ZEMA; the appeal to the Minister and the High Court; the protected-area and transboundary grounds to the courts; the breach to ZEMA's enforcement; the parent to a foreign court; the harm to the press.

STEP 5: MEDIA STRATEGY

In Zambia, public attention makes a national-park mine a national cause — Kangaluwi drew in founding-president appeals and a broad public. A free press, conservation groups, and the tourism industry make the media front central.

Lead with people and place, not procedure. Not "the EIS was deficient" but "the park, the elephants, and the river that feeds communities in three countries — for an open-pit copper mine." Use your strongest material: dated photographs, the map of the mine inside the park, the downstream harm, and any cancellation or court win banked.

Work several audiences at once. Local and national press build political pressure; conservation groups and tour operators amplify; and international media reach the operator's parent and financiers, and the world's stake in the Zambezi. Make it easy: captioned photos, accurate summaries, a map, strong voices.

Two hard rules. Accuracy above all — one exaggeration can discredit everything. And protect people — get legal advice before any direct action.

EMAILS & LETTERS

Make them your own; keep them factual and calm; keep copies; the documents are yours as of right.

8A — Request for the public documents (to ZEMA).

Subject: Request for the project file — [project].

"As these are public documents under the Environmental Management Act, we, residents of [place], request the project brief, the EIS and Terms of Reference, the comments and hearing report, the decision letter and conditions, and the audits for [project] at [location]. [Contact.]"

8B — Objection / demand for an accessible hearing.

Subject: Objection and request for an accessible public hearing — [project].

"We, residents of [place], object to [project]: [it is a mine in a national park; the EIS understates the impact on the river; Zimbabwe and Mozambique were not consulted]. We request a public hearing where affected people can attend. [Attach evidence.]"

8C — Public appeal to the Minister.

Subject: Appeal of ZEMA's decision — [project].

"As members of the public, we appeal ZEMA's decision to authorise [project] to the Minister, on the grounds that [it is unlawful in a national park / the EIS is defective / the transboundary duty was ignored]. [Attach evidence.]"

8D — To a public-interest lawyer (High Court / foreign parent).

Subject: Legal challenge — [project].

"Our community faces [project] in [a national park / on the Zambezi]. We've gathered [the public file, photographs] and believe there are grounds in the High Court [and, as the operator is a subsidiary of [parent], possibly abroad]. We ask for your help, as partners. [Contact and evidence summary.]"

8E — Reporting a breach of conditions (to ZEMA).

Subject: Breach of environmental conditions — [project].

"We report that [project] has breached its environmental conditions: [specifics]. We ask ZEMA to enforce, and — as at Kangaluwi — to consider cancelling the authorisation. [Attach evidence.]"

8F — To a financier or the parent's home networks.

Subject: Environmental and legal risk in [project].

"We understand your institution may be [financing] [project] at [location], a mine [in a national park / on a transboundary river] facing legal challenge and, potentially, a claim against its parent abroad. We ask you to weigh this. [Contact and evidence summary.]"

8G — Letter to the press.

Subject: [Community] moves to protect [park / river] from [project].

"For generations the people of [place] and downstream have depended on [the park / the river] at [location]. Now [project] — an open-pit mine inside a national park — threatens it. We can provide photographs, the public file, a map and interviews. [Contact.]"

8H — Rallying the community.

Subject: We can stop this — here's how.

"[Project] threatens [our park / river]. At Kangaluwi, a coalition of communities, conservationists, and tour operators stopped a copper mine inside a national park. With the public documents, an accessible hearing, the public right of appeal, and enforcing the conditions behind us, we have a real chance — and we must guard the win. Please join us. [Contact.]"

IF YOU HAVE LITTLE TIME OR FEW RESOURCES: THE RAPID-FIRE VERSION

If you must move fast and lean, do these six things, in order:

- 1. Nail down the project, its footprint, and whether it's in a protected area or on a transboundary river.** These are your sharpest levers.
- 2. Get the public documents as of right (8A), and object; demand an accessible hearing (8B).**
- 3. Read the file for a defective EIS, an inaccessible hearing, or a missing transboundary consultation.**
- 4. Photograph everything, with dates and places.** Baseline images before any damage matter most.
- 5. Use the public right of appeal to the Minister and, if needed, the High Court (8C/8D); watch for and report breaches (8E).**
- 6. Build the conservation-and-tourism coalition, go public, and consider the foreign parent (8G/8H).** Kangaluwi was stopped this way.

Even lean, those six use your rights, get the public file, hit the park and river levers, and start a coalition.

WHEN THE SYSTEM IS TILTED

Zambia's tools are real, but the field can be tilted, and you must plan for it.

When a Minister backs the project. The Minister can overturn ZEMA (as at Kangaluwi). Don't fold: be ready for the High Court, enforce the conditions, and build a public coalition that raises the political cost.

When a win is reopened. This is the Kangaluwi lesson: a cancelled project can resurface with fresh permits. Guard your win — watch for new applications, keep the coalition and the petition alive.

When ZEMA is stretched thin. The agency is under-resourced against a huge industry. Do its work for it — bring the defects, the breaches, and the evidence, and use the public right of appeal.

When enforcement is weak. A condition or a court order can be ignored on the ground. Pair it with the coalition, the press, and — for a subsidiary — the parent company abroad.

WHEN IT'S ACTUAL CORRUPTION — AND WHO'S CAPTURED

Zambia has documented problems with the capture of mining approvals by political and investor interests — the Ministerial overturning of ZEMA at Kangaluwi is a cautionary tale — so this matters.

How to spot it. Approvals against ZEMA's own technical findings; a Minister overturning a refusal; an EIS written for the proponent; a hearing held where affected people can't attend; benefits to the connected while the community carries the harm.

Who's supposed to guard against it. The **Auditor-General** examines public money. The **Anti-Corruption Commission** and the **Drug Enforcement Commission** (for financial crime) investigate graft. The **High Court** can set aside a tainted decision. And Zambia's **free press and conservation civil society** have exposed captured approvals.

How to fight it safely. Document precisely and factually — how the process was bent, who benefits, what the law required — and keep clear the line between what you can prove and what you suspect. Route serious evidence to the Auditor-General, the Anti-Corruption Commission, and trusted journalists rather than making accusations you can't back. Pair the exposure with the legal challenge and the public campaign.

INTEGRATION & TIMELINE

Don't run these steps one after another — run them together. The public documents build your proof; pinning down the park and river levers aims it; the coalition builds the muscle; the appeal and the courts press the case; enforcing the conditions and the foreign-parent route add pressure; the media raises the cost. Together they multiply. One at a time, they stall — and remember to defend the win.

Early on (weeks 1–8): nail down the project, its footprint, and any protected area or transboundary river; get the public documents and object; demand an accessible hearing; photograph the baseline; build the conservation-and-tourism coalition and get a lawyer.

In the thick of it (months–years): use the public right of appeal to the Minister and the High Court; press the protected-area and transboundary grounds; watch for and report breaches of conditions; pursue the foreign parent where relevant; open the media front.

The long haul (years): carry the case through the courts (and any foreign court); keep the coalition and the petition alive; hold the line for a cancelled authorisation, a set-aside decision, delay, and conditions — and guard the win against a revival.

FINAL ASSESSMENT

Stopping a destructive project in Zambia can be done — a coalition of communities, conservationists, and tour operators stopped an open-pit copper mine inside the Lower Zambezi National Park, even after a Minister had forced it through. Hold both truths. Zambia's tools are real, if stretched: a ZEMA authorisation and public participation; a genuinely unusual public right to appeal to the Minister and the High Court; public documents as of right; strong protected-area and transboundary grounds; enforceable conditions and audits; and, as a backstop, foreign courts that reach parent companies. And the constraints are real: a Minister who can overturn ZEMA, an under-resourced agency, slow litigation, and — the Kangaluwi lesson — a win that can be reopened.

Here's the discipline that wins. Establish whether it's in a protected area or on a transboundary river — your sharpest levers — and get the public documents as of right, and read them for a defective EIS, an inaccessible hearing, or a missing transboundary consultation. Object, and demand an accessible hearing. Use the public right of appeal to the Minister and the High Court, watch for and report breaches of conditions, and — for a subsidiary — pursue the parent abroad. Build the conservation-and-tourism coalition, carry the story to the nation and the world, and guard your win. Count a cancelled authorisation, a set-aside decision, delay, and conditions as wins alongside an outright stop. That's what Kangaluwi did — the coalition, the public appeal, and the enforcement of conditions together. So can you.